

25STCP02346 25STCP02346

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 25STCP02346 Hearing Date: July 22, 2026 Dept: 26

TENTATIVE

RULING:

The Labor

Commissioner's Motion to Amend Judgment Nunc Pro Tunc to Correct Clerical Error

is granted. The Court signs the proposed order filed with this Motion.

Analysis:

On June 24, 2025, the Labor

Commissioner filed a Request that Clerk Enter Judgment and Judgment on Final

Order, Decision or Award of the Labor Commissioner. The Court entered judgment

in favor of Plaintiff Michael Tlalpa and against Defendant Renee Avedissian on

June 25, 2025.

On May 1, 2026, Plaintiff filed the

instant Motion to Amend Judgment Nunc Pro Tunc to Correct Clerical Error. The

Motion was served on Defendant by first-class mail on the same day. No

opposition has been filed to date.

Discussion

Plaintiff moves pursuant to Code of Civil

Procedure section 473, subdivision (d) to amend the judgment entered on June 24,

2025 on the grounds that the Labor Commissioner inadvertently attached the

wrong Order, Decision, or Award (“ODA”) to its Request that Clerk Enter

Judgment. The ODA attached pertained to Plaintiff Alejandro Tlalpa instead of the

correct party in this action, Plaintiff Michael Tlalpa. (Motion, Hernandez

Decl., ¶¶3-4.)

Courts have inherent powers to

correct judgments by a nunc pro tunc order where there has been clerical error

by clerk or by the judge himself, or where some provision of, or omission from,

order or judgment was due to inadvertence, or mistake of court. (Lane v.

Superior Court of Siskiyou County (1950) 98 Cal App 2d 165, 219; Code Civ.

Proc., § 473, subd. (d).) This includes clerical errors when made by an

attorney who drafts the judgment. (See In re Marriage of Kaufman (1980)

101 Cal.App.3d 147, 151.) However, while a trial court may correct clerical

errors and misprisions in a judgment, it cannot amend a judgment once entered,

if the error to be corrected is a judicial one, for instance if it embodies an

intentional action of the court even though legally erroneous. (Kamper v.

Mark Hopkins, Inc. (1947) 78 Cal App 2d 885.)

In light of the

Labor Commissioner's clerical error attaching the wrong ODA to the Request for

Entry of Judgment, the Motion to amend the judgment by substituting the correct

ODA is granted. The Court deems substituted the ODA in State Case No.

WC-CM-812270 (Michael Tlalpa) for the ODA inadvertently attached from State

Case No. WC-CM-779891. The correct ODA

is attached as Exhibit A to the Declaration of Jessenya Y. Herndandez, filed in

this matter on May 1, 2026. (See Mot., Hernandez Decl., Exh. A.)

Conclusion

The Labor

Commissioner's Motion to Amend Judgment Nunc Pro Tunc to Correct Clerical Error

is granted.

The Court signs

the proposed order filed with this Motion.

Moving

party to give notice.